DEPARTMENT OF EARLY CHILDHOOD

Division of Early Learning, Licensing, and Administration

CHILD CARE FACILITY LICENSING RULES AND REGULATIONS

8 CCR 1402-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

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2.500 RULES REGULATING SCHOOL-AGE CHILD CARE CENTERS

2.501 AUTHORITY

These rules and regulations are adopted pursuant to the rulemaking authority provided in section 26.5-1-105(1), C.R.S., and are intended to be consistent with the requirements of the State Administrative Procedures Act, sections 24-4-101 through 24-4-204 (the "APA"), C.R.S.; the Anna Jo Garcia Haynes Early Childhood Act, sections 26.5-1-101 through 26.5-6-103 (the "Early Childhood Act"), C.R.S.; the Child Care Licensing Act, sections 26.5-5-301 through 26.5-5-329, C.R.S.; and the Child Care Development and Block Grant Act of 2014, 42 U.S.C. sec. 9858e.

The specific rulemaking authorities granted for the School-Age Child Care Centers include section 26.5-5-314, C.R.S.

2.502 SCOPE AND PURPOSE

The Colorado Department of Early Childhood, Division of Early Learning, Licensing, and Administration is responsible for the administration of health and safety rules and requirements for licensed child care facilities. These rules and regulations shall govern the health and safety requirements of licensed school-age child care centers in Colorado. All school-age child care centers must comply with the "General Rules for Child Care Facilities" in rule section 2.100, "Rules Regulating School-Age Child Care Centers" in rule section 2.500, and the "Rules Regulating Special Activities" in rule section 2.600.

2.503 APPLICABILITY

The provisions of these rules and regulations shall be applicable to licensed school-age child care centers caring for five (5) or more children with or without compensation for such care and with or without stated educational purposes.

2.504 DEFINITIONS

A. A "school-age child care center" (hereafter referred to as the "center") is a child care center that provides care for whole or part of the day for the care of five (5) or more children who are between five (5) and eighteen (18) years of age. Children four (4) years of age, who will turn five (5) on or before October 15th of the current calendar year may attend the center as part of a "building-based school-age child care center" or "building-based day camp" summer program. The center must operate for more than one week during the year. The term includes facilities commonly known as "day camps," "summer camps," "before and after school programs," and "extended day programs." This includes centers operating with or without compensation for such care, and with or without stated educational purposes.

B. A "building-based school-age child care center" is a child care program that provides care for five (5) or more children who are between five (5) and eighteen (18) years of age. The center is located in a building that is regularly used for the care of children.

C. A "day camp" is a school-age child care center which operates at least four (4) hours a day primarily during one season of the year, and during school vacation periods for children between five (5) and eighteen (18) years of age. Programs may operate daily between 6:00 a.m. and 10:00 p.m. Day camp programs may offer no more than two (2) overnight stays per camp session.

The types of day camps are as follows:

1. A "building based day camp" is a child care center that provides care for five (5) or more children who are between five (5) and eighteen (18) years of age. The day camp is located in a building which, along with the outdoor surroundings, is regularly used by the program.

2. A "mobile day camp" is a child care center that provides programming for five (5) or more children who are at least six (6) years of age. Children move from one site to another by means of transportation provided by the governing body of the program. The program uses no permanent building on a regular basis. Mobile day camp programs may operate in multiple sites, in a single county, under one license.

3. An "outdoor-based day camp" is a child care center that provides care for five (5) or more children who are at least six (6) years of age. The day camp does not use a permanent building on a regular basis and provides programming in a permanent outdoor or park setting.

D. "Adverse Weather" means weather that poses a significant health risk that includes wind chill factor below -15°F (-26°C) and heat index at or above 94°F (32°C), as identified by the by the National Weather Service (NWS). When temperatures are above 90°F, school-age child care centers must monitor children for signs of overheating and ensure children have access to shade and water at all times.

E. "Air Quality Index Advisory Unhealthy for Sensitive Groups" means an Air Quality Index value of 101 to 150. People with asthma, children, and older adults are the groups most at risk as defined and explained by the Environmental Protection Agency (EPA) at https://www.airnow.gov/sites/default/files/2018-04/aqi_brochure_02_14_0.pdf (Feb. 2024), herein incorporated by reference. No later editions or amendments are incorporated. These resources are available at no cost from the Environmental Protection Agency (EPA) at https://www.airnow.gov/aqi/aqi-basics/. These resources are also available for public inspection and copying at the Colorado Department of Early Childhood, 710 S. Ash St., Denver, CO 80246, during regular business hours.

F. "Health care provider" means a Licensed Physician, Physician Assistant, and Nurse Practitioner registered or licensed by the Colorado Medical Board or the State Board of Nursing.

G. The "Department" means the Colorado Department of Early Childhood.

H. "Staff" and all references to staff or staff positions include paid staff, equally qualified volunteers, and substitutes.

POLICIES AND PROCEDURES

2.505 STATEMENT OF POLICIES AND PROCEDURES

A. At the time of enrollment, and upon amendments to policies and procedures, the center must give the parent(s) or guardian(s)) the center's policies and procedures and provide the opportunity to ask questions. Written copies must be available either electronically or in hard copy. The center must obtain a signed document stating that the parent(s) or guardian(s) have received the policies and procedures, and by signing the policies and procedures document, the parent(s) or guardian(s) agree to follow, accept the conditions of, and give authorization and approval for the activities described in the policies and procedures.

B. Policies and procedures must be reviewed annually. Any changes must be incorporated and must be communicated to the parent(s) or guardian(s).

C. The written policies and procedures must be developed, implemented, and followed, and must include at a minimum the following information:

1. The center's purpose and its philosophy on child care.

2. The ages of children accepted.

3. Services offered for special needs children in compliance with the Americans with Disabilities Act (see rule section 2.119 of the General Rules for Child Care Facilities).

4. The hours and dates when the center is in operation, specific hours during which special programs are offered, and holidays when the center is closed.

5. The policy regarding adverse weather, and Air Quality Index Advisory Unhealthy for Sensitive Groups as defined in rule 2.504.E..

6. The procedure concerning admission and registration of children including whether non-immunized or under immunized children are enrolled in the school-age child care center.

7. An itemized fee schedule.

8. The procedure for identifying where children are at all times, how children are accounted for throughout the day, and that children are supervised at all times by their assigned staff member.

9. The procedure on positive guidance, behavior expectations, positive instruction, supporting positive behaviors, as well as the strategies and techniques for supporting children with challenging behaviors, including how the center will:

a. Promote responsive and positive child, staff and family relationships and interactions;

b. Create and maintain a program-wide culture that promotes children's mental health, social, and emotional well-being;

c. Implement teaching strategies supporting positive behavior, pro-social peer interaction, and overall social and emotional competence in young children; and

d. Provide individualized social and emotional intervention supports for children who need them, including methods for understanding child behavior; and developing, adopting and implementing a team-based positive behavior support plan with the intent to reduce challenging behavior and prevent suspensions and expulsions.

10. How decisions are made and what steps are taken prior to the suspension, expulsion, or request to parent(s) or guardian(s) to withdraw a child from care due to concerns about the child's behavioral issues. These procedures must be consistent with the center's policy on guidance and positive instruction, and include documentation of the steps taken to understand and respond to challenging behaviors including:

    a. Accessing an early childhood mental health consultant, as defined in section 26.5-3-701, C.R.S., or other specialists as needed.

11. The procedure, including notification of parent(s) or guardian(s), for handling children's illnesses, accidents, and injuries, including when children will be excluded from care and notification of parent(s) or guardian(s)

12. The procedures including notification of parent(s) or guardian(s) when a child is separated from their group and is not under the direct supervision of their assigned staff member or for whom the local authorities have been contacted.

13. The procedure for transporting children, if applicable, including children's safety related to riding in a vehicle; seating, supervision, and emergency procedures on the road; transportation arrangements; and parental permission for excursions and related activities.

14. The written policy and procedure governing field trips, television and video viewing, and special activities, including the staff's role for the supervision of children.

15. Media and internet usage policy outlining screen and media use related to their curriculum. The media plan must have information on ongoing communication with children about online safe practices for children over the age of four (4).

16. The procedure for releasing children from the center only to persons for whom the center has written authorization and the procedure for picking-up the child during an emergency.

17 The procedures followed when a child is picked up from the center after the closing hours of the center or not picked up at all, and the procedure to ensure that all children are picked up before the staff leave for the day.

18. The procedure for caring for children who arrive late to the center and their class/group is away from the center on a field trip or excursion.

19. The procedure for storing and administering children's medications and delegation of medication administration in compliance with section 12-255-131, C.R.S., of the "Nurse and Nurse Aide Practice Act."

20. The procedure concerning children's personal belongings and money.

21. The policy concerning meals and snacks

22. The policy and procedure regarding visitors.

23. The procedure for filing a complaint about child care including the name, address, and telephone number of the Colorado Department of Early Childhood (see rule section 2.125 of the General Rules for Child Care Facilities).

24. The procedure for reporting child abuse and/or neglect, including the name of the county department of social/ human services and phone number of where a child abuse report should be made (see section 2.126 of the General Rules for Child Care Facilities).

25. The policy for notification when child care service is withdrawn by the program, or when parent(s) or guardian(s) withdraw their child(ren) from the center.

26. The procedure, if applicable, for transitioning children between school or community sponsored activities.

27. The procedures for emergencies and disaster preparedness such as but not limited to lost children, tornadoes, fires, shelter in place, lockdown, active shooter on premises, reunification with families after emergency or disaster, and evacuating children with disabilities as specified in rule sections 2.133 through 2.138 of the General Rules for Child Care Facilities.

2.506 COMMUNICATION, EMERGENCY, AND SECURITY PROCEDURES

A. For security purposes, a sign-in/sign-out sheet or other mechanism for parent(s) or guardian(s) must be maintained daily by the center. The sign-in/sign-out mechanism must include, for each child in care, the date, the child's name, the time when the child arrived and left the center, and the parent(s) or guardian(s) signature or other unique identifier.

1. Staff must verify attendance before and after every group transition from one physical space to another. Written or electronic documentation of attendance verification must be maintained for at least twelve (12) months.

2. With a parent(s) or guardian(s) approval, a child five (5) years of age or older may sign in and out instead of the parent(s) or guardian(s).

B. The center must provide an office and/or monitored telephone number known to the public and available to parents/guardians in order to provide immediate access to the center. The telephone must be available to staff at all times the center is in operation.

C. Emergency telephone numbers must be posted at each permanent site and taken on all field trips and during mobile school-age child care centers. The emergency numbers must include, at a minimum, 911, or a rescue unit if 911 isn't available; a hospital or emergency medical clinic nearest to the activity location; fire, police, and health departments; and Rocky Mountain Poison Control.

D. The center must be able to provide emergency transportation to a health care facility at all times.

E. The director of the center or the director's delegated substitute must have a means for determining who is present at the center at all times.

F. A written policy regarding visitors to the center must be posted and a record maintained daily by the center that includes, at a minimum, the date, time, the visitor's name and the purpose of the visit. At least one piece of photo identification must be inspected for individuals who are unknown to personnel at the center.

G. The center must release a child only to an individual for whom written authorization has been given by the parent(s) or guardian(s) and is maintained in the child's record (see rule section 2.525).

1. In an emergency, the child(ren) may also be released to an individual for whom the child's parent(s) or guardian(s) has given verbal authorization..

H. The center must have a procedure for dealing with individuals not authorized by the parent(s) or guardian(s) of a child who attempts to have the child released to them (see rule section 2.505(A)(15)).

I. The center must have a written procedure for closing the center at the end of the day to ensure that all children are picked up (see rule section 2.505(A)(16)).

STAFF

2.507 GENERAL REQUIREMENTS FOR ALL STAFF

A. All staff and volunteers at the center must demonstrate knowledgeable decision-making, judgment, and concern for the proper care and well-being of children.

B. All staff and volunteers must not consume or be under the influence of any substance that impairs their ability to care for children.

C. Illegal drugs and drug paraphernalia, must never be present on the premises of the center.

D. Staff must not use cannabis and cannabis infused products, vaping or tobacco products of any kind, or alcohol in the presence of children. To prevent exposure to secondhand smoke, child care centers must prohibit the use of vaping, tobacco, and cannabis and cannabis infused products on all center property, both indoors and outdoors. All cannabis and cannabis infused products, vaping and tobacco products, and alcohol must be kept inaccessible to children at all times.

E. When caring for children, staff must refrain from the personal use of electronics including, but not limited to, cell phones and portable electronic devices.

1. When caring for children use of electronic devices is permitted for educational and administrative purposes.

F. Unless medically contraindicated, staff members must be current for all immunizations required by their employer.

G. Each staff member and regular volunteer as defined in rule section 2.509 must complete an annual self-reported health history. The health history must be maintained by the center in a secure location.

H. The duties and responsibilities of each staff position and the lines of authority and responsibility within the center must be in writing.

I. Prior to working with children, the staff member must read and be instructed on all of the policies and procedures of the center outlined in rule section 2.505. Staff members must sign a statement indicating that they have read and understand the center's policies and procedures.

J. Prior to working with children, each staff member must read and be trained on the center’s policies and procedures for the administration of medications. Staff members must sign a statement indicating that they have read and have been trained on the center's administration of medications policies and procedures.

K. Within thirty (30) calendar days of caring for children a signed statement indicating that the individual has been trained, understands, and has had the opportunity to ask questions regarding the "Rules Regulating School-Age Child Care," the "General Rules for Child Care Facilities," and the "Rules Regulating Special Activities," if applicable.

L. If volunteers are used by the center, there must be a clearly established policy regarding their function, orientation, and supervision.

M. Within thirty (30) calendar days of the last day of employment, staff members must be provided with a letter verifying their experience at the center. The letter must contain the center's address, phone number, and license number; the employee's start date and end date; and the total number of hours worked with children. The letter must be signed by a director, owner, or human resources agent of the center or governing body.

2.508 TRAINING

A. Prior to working with children all staff members must complete a Department-approved standard precautions training. This training must be renewed annually and may count towards ongoing training requirements.

B. Prior to working with children all staff members must complete a building and physical premises safety training. The training must include: Identification of and protection from hazards that can cause bodily injury such as electrical hazards, bodies of water and vehicular traffic; and Handling and storage of hazardous materials and the appropriate disposal of biological contaminants.

1. This training is developed and facilitated by the school-age child care center for staff to identify program specific environmental hazards. Staff must be retrained if there are changes to the building and physical premises.

C. Within thirty (30) calendar days of employment all staff member responsible for the collection, review and maintenance of the child immunizations records must show evidence they have completed the Colorado Department of Public Health and Environment (CDPHE) immunization course. This training must be renewed annually and may count towards ongoing training requirements.

D. Within (30) calendar days of employment all staff members and regular volunteers must complete a Department-approved training about child abuse prevention, which includes common symptoms and signs of child abuse how to report, where to report, and when to report suspected or know child abuse or neglect. This training must be renewed annually and may count towards ongoing training requirements.

E. Within ninety (90) calendar days of employment all staff must have at least one (1) hour of child development training . This training must include the major domains (cognitive, social, emotional, physical development and approaches to learning). This training is required once (1 time) and will count toward ongoing training requirements if taken after the date of hire.

F. For every thirty (30) or fewer children in attendance, there must be at least one (1) staff member who holds current Department-approved First Aid and Safety certification including CPR for all ages of children. Such individuals must be with the children at all times when the center is in operation. If children are at different locations, there must be a First Aid and CPR certified staff member at each location.

1. Within thirty (30) calendar days of employment all employees caring for children, not required by rule to be certified in First Aid and CPR, must complete a Department-

approved basic First Aid and CPR module within thirty (30) calendar days of employment and the module must be renewed every two (2) years.

G. Within ninety (90) calendar days of employment all staff must complete the Department-approved course in injury prevention for school-age children. This training is required once (1 time) and will count toward ongoing training requirements.

H. Within ninety (90) calendar days of employment all staff must complete the Department-approved course in playground safety for School-Aged Child Care Centers. This training is required once (1 time) and will count toward ongoing training requirements.

1. This requirement does not apply to school-age child care centers that do not regularly use a playground.

I. Within ninety (90) calendar days of employment, all program directors must complete the Department-approved training: Working with an Early Childhood Mental Health Consultant. This course is required once (1 time) and will be counted towards ongoing training requirements.

J. Within ninety (90) calendar days of employment, all program directors must complete the Department-approved training: Introduction to Child Care Health Consultation. This course is required once (1 time) and will be counted towards ongoing training requirements.

K. All staff in building-based school-age child care centers who work with children must complete a minimum of fifteen (15) clock hours of ongoing professional development each year, beginning with the start date of the employee. At least three (3) clock hours per year must be in the focus of social emotional development.

1. Ongoing training and courses must demonstrate a direct connection to one (1) or more of the following competency areas:

a. Child growth and development,;

b. Child observation and assessment;

c. Family and community partnership;

d. Social-emotional health and development promotion;

e. Health, safety and nutrition;

f. Professional practice; and

g. Teaching practices.

2. Each one (1) semester hour course with a direct connection to the competency area listed in rule section 2.508(K), taken at a regionally accredited college or university may count as fifteen (15) clock hours of ongoing training.

3. Training hours completed can only be counted during the year taken and cannot be carried over.

4. To be counted for ongoing training, the training certificate must have documentation that includes:

a. The title of the training;

b. The competency domain;

c. The date and clock hours of the training;

d. The name or signature, or other approved method of verifying the identity of trainer or entity;

e. Expiration of training if applicable; and

f. Connection to social emotional focus if applicable.

2.509 REQUIRED STAFF QUALIFICATIONS

A. Program Director

1. Each school-age child care center must have an on-site director. The director is responsible for operating the center in accordance with licensing rules, planning, and implementing the school-age child care center as well as the supervision of staff.

2. The program director must be at least twenty-one (21) years of age, and must have completed at least one (1) of the following qualifications:

a. A Bachelor's, Master's, or Doctorate degree from an accredited college or university with a major area of study in one (1) of the following areas:

(1) Child Development

(2) Psychology

(3) Early Childhood Education

(4) Early Childhood Special Education

(5) Elementary Education

(6) Elementary Special Education

(7) Family and Human Development

(8) Family Studies

(9) Special Education

(10) Outdoor Education

(11) Recreation

(12) Human Services

b. An associate's degree or sixty (60) semester credit hours from an accredited college or university and three (3) months (455 hours) of experience in the care and supervision of four (4) or more children over the ages of four (4) years who are not related to the individual; or

c. Twenty-one (21) months (3,185 hours)) of, experience in the care and supervision of four (4) or more children over the ages of four (4) years who are not related to the individual and one of the following qualifications:

(1) Completion of six (6) semester hours, from a regionally accredited college or university; or

(2) Completion of forty (40) clock hours of training in course work applicable to school-age children within the first nine months in the director position. The 40 clock hours of training cannot include any of the required trainings as listed in rule section 2.508; or,

d. A current early childhood professional credential level II (2) or higher in version 3.0 as determined by the Department based on its Early Childhood Professional Credential 3.0 Worksheet, found at https://www.coloradoshinespdis.com/s/about-the-ecpc?language=en_US.

B. Program Leaders

1. Each program leader must be at least eighteen (18) years of age, demonstrate ability to work with children, and must have completed at least one (1) of the following qualifications:

a. Must have at least three (3) months (455 hours) of verified experience in the care and supervision of four (4) or more children over the ages of four (4) who are not related to the individual; or.

b. A current early childhood professional credential level I one (1) or higher in version 3.0 as determined by the Department based on its Early Childhood Professional Credential 3.0 Worksheet, found at https://www.coloradoshinespdis.com/s/about-the-ecpc?language=en_US.

C. Program Aides

1. Program aides must be at least sixteen (16) years of age.

2. Program aides must work directly under the supervision of the program director or program leaders and must never be left alone with children unless otherwise specified in the rule.

D. Substitute Staff

1. Equally qualified staff must be available to substitute for regularly assigned staff who are sick, on vacation, or otherwise unable to be on duty.

2. For short term unscheduled program director vacancies up to ten (10) business days per calendar year, a qualified program leader can substitute for the program director. The date and times of substitution must be available for review at all times.

E. Volunteers

1. If volunteers are used by the center, there must be a clearly established policy in regard to their function, orientation, and supervision.

2. Volunteers who are used to meet staff to child ratio must be equally qualified as a program director, program leader, or program aide.

3. Equally qualified volunteers must have complete staff records as required in rule section 2.531 and complete the training requirements required in rule section 2.508.

4. Volunteers who are not required to be equally qualified or successfully complete background checks must be given instruction as to the center's policies and procedures, and must have a written purpose developed by the center for volunteering.

5. Volunteers unless equally qualified must work directly under the supervision of the program director or a program leader and must never be left unsupervised with children.

F. Emergency Staffing Situations

1. In the case of an emergency situation, including but not limited to illness, death, accident, law enforcement action, road closure, hazardous weather, emergency bodily function, child elopement, or providing emergency attention or care to a child, the child care center may operate under the following guidelines:

a. The facility may temporarily use a staff member, who has successfully completed criminal background check requirements, to supervise children for no more than two (2) hours until a qualified staff member is secured. The dates and times must be recorded and made available for review at all times.

b. A school-age child care centers that operate on the property of a school district, district charter school, or institute charter school, may permit a staff member, who has successfully completed criminal background check requirements but is not a qualified caregiver, to supervise children for an amount of time that is reasonably necessary to address an emergency circumstance.

c. During any emergency situation, the facility must be in compliance with the staff-to-child ratio as stated in rule section 2.510.

G. Department-approved Child Care Health Consultant

1. Center staff must consult with a current Department-approved Colorado Child Care Health Consultant who must have knowledge and experience in maternal and child health and must meet one (1) of the following qualifications:

a. A licensed registered nurse;

b. A pediatric nurse practitioner;

c. A family nurse practitioner; or

d. A physician.

2. All Department-approved Child Care Health Consultants must meet one of the following qualifications and have documentation available for review:

a. New consultants Or Child care health consultants who do not have documentation of CCHC 101 completion must complete a Provisional CCHC Qualification in the Professional Development Information System (PDIS) before consulting. The Provisional CCHC Qualification is valid for six (6) months.

(1) Within six (6) months of completion of the Provisional CCHC Qualification all Department-approved Child Care Health Consultants must complete the Full CCHC Qualification in the Professional Development Information System (PDIS).

b. Department-approved Child Care Health consultants who have documentation of a completed CCHC 101 course, prior to January 1, 2023, must complete a Full CCHC Qualification in the Professional Development Information System (PDIS).

c. Child Care Health Consultants must maintain their CCHC qualification in the Professional Development Information System (PDIS) by updating and completing required training every two (2) years .

d. All Child Care Health Consultants must show evidence they have completed the Colorado Department of Public Health and Environment (CDPHE) immunization course annually.

3. The Child Care Health Consultant must consult with the facility and consultation must be specific to the needs of the center and include some of the following topics: training; delegation and supervision of medication administration and special health procedures; health care; hygiene; disease prevention; equipment safety; interaction between children and adult caregivers; and normal growth and development.

a. Consultation must occur as often as the Child Care Health Consultant who is delegating medications and/or medical procedures requires.

b. The date and content of each consultation must be recorded and maintained in the center's files.

H. At least one (1) staff member with current Department-approved medication administration training and delegation must be on duty at all times.

I. Employment of maintenance staff, including kitchen service, grounds, and housekeeping employees less than sixteen (16) years of age, must be in compliance with Colorado labor laws.

2.510 REQUIRED STAFF SUPERVISION

A. A program director must be present at the center at least sixty percent (60%) of any day the center is in operation. An individual who meets one of the following requirements must be present for the remaining forty percent (40%) of the day:

1. A qualified program leader who is at least twenty-one (21) years of age;

2. A qualified program leader who has at least one (1) year (1820 hours) full-time or equivalent part-time verifiable experience working with children; or

3. Two (2) qualified program leaders who are at least nineteen (19) years of age.

B. If the program director cannot be present sixty percent (60%) of any day the center is in operation, an individual who meets program director qualifications must substitute for the director.

C. There must be at least one (1) program leader providing supervision with each group of thirty (30) or fewer children cared for by the center. unless otherwise specified in rule. The program director may be the assigned staff for one (1) group of children.

D. The maximum group size for children is thirty (30) children.

1. When the center has the capacity to care for multiple groups of children, they must be separated into developmentally- and age-appropriate activities. Groups are not required to be separated from each other by permanent or portable dividers or walls.

2. Group size for children in care may be exceeded for attendance time, meal and snack time, special occasions, and activities.

3. The room capacity must not be exceeded.

E. There must be one (1) staff member for each fifteen (15) children in attendance.

F. While four (4) year olds are in attendance, if there are any violations for: lack of supervision, operating out of approved staff to child ratios, or operating without sufficient qualified staff, the school-age child care center must maintain a 1:12 staff to child ratio with a max group size of twenty-four (24) children any time four (4) year olds are present.

1. After a one (1) year period from initial violation if there are no subsequent violations for: lack of supervision, operating out of approved staff to child ratios, or operating without sufficient qualified staff, the school-age child care center can operate with the staff to child ratios as listed in rule section 2.510.

G. At any time when nine (9) or more children are in care at the center, there must be at least one (1) program leader actively supervising children and another responsible person at least sixteen (16) years of age on the premises. When eight (8) or fewer children are present, there must be at least one (1) program leader on duty and a second staff member on call who is immediately available in an emergency.

H. At all times, school-age child care personnel must be directly supervising the children.

I. Program aides, without supervision from a program director or program leader, may supervise no more than four (4) children when taking the children to the restroom, filling up water bottles, or obtaining water bottles or a coat from inside.

ADMISSION PROCEDURE

2.511 ADMISSION

A. The center can only accept and care for children of the ages and capacity for which it has been licensed. At no time shall the number of children in attendance exceed the number for which the center has been licensed.

B. Admission procedures must be completed prior to the child's first day in care at the center and must include:

1. Completion of the registration information for inclusion in the child's record, as required in rule section 2.530; and

2. Providing the parent(s) or guardian(s) with a copy of the center's most recent policies and procedures.

3. If applicable, a Department-approved health care plan authorized by the child's health care provider and parent(s) or guardian(s) defining the interventions needed to care for a child who has an identified health or developmental condition or concern including, but

not limited to seizures, asthma, diabetes, severe allergies, heart or respiratory conditions, and physical disabilities.

a. Any applicable medications, supplies, and/or medical equipment must be available to the staff prior to the child's first (1st) day of care.

b. The staff working with a child with a health care plan must be informed, trained, and delegated responsibility for carrying out the health care plan by the Department-approved Child Care Health Consultant; supervision of the plan and interventions must be documented.

C. Children with Special Needs

1. The admission of children who have special health care needs, disabilities, or developmental delays which includes children with social, emotional, and behavioral needs must be in alignment with the training and ability of staff and in compliance with the Americans with Disabilities Act. Services offered must show that a reasonable effort is made to accommodate the child's needs and to integrate the child with other children. (see rule section 2.119 of the General Rules for Child Care Facilities)

2. The center must inform its Department-approved Child Care Health Consultant prior to the first (1st) day of care of the enrollment of a child with special health care needs, if known, so staff receive training, delegation and supervision by the Department-approved Child Care Health Consultant as indicated by the child's individualized health care plan.

3. For a child with special health care needs requiring intervention and/or medication, the center must obtain written instructions for providing services from the child's parent(s) or guardian(s), and the health care provider. If an existing individualized health care plan is provided for the child, it must be reviewed and followed by the center staff when caring for the child. If the child does not have an existing individualized health care plan, the individualized health care plan must be obtained by the child's first (1st) day of care.

4. For an enrolled child with a newly identified special health care need, the center must obtain written instructions for providing services from the child's parent(s) or guardian(s) and the health care provider. If the child with special health care needs does not have an existing individualized health care plan, the individualized health care plan and all associated medication(s) and/or equipment must be provided within thirty (30) calendar days of the child's identified need.

5. The individual health care plan must be updated at least every twelve (12) months from the date of the initial plan, and as changes occur. The plan must include all information needed to care for the child, must be signed by the health care provider and parent(s) or guardian(s), and must include, but not be limited to, the following:

a. Medication and dosing schedule;

b. Nutrition and feeding instructions;

c. Medical equipment or adaptive devices, including instructions;

d. Medical emergency instructions;

e. Toileting and personal hygiene instructions;

f. Behavioral interventions; and

g. Medical procedure/ intervention.

HEALTH CARE

2.512 STATEMENTS OF HEALTH STATUS

A. The center has the right to refuse to admit a child if a statement of health history, documentation of immunization status, or exemption, is not submitted.

B. At the time of enrollment, the parent(s) or guardian(s) must provide for each child entering the center:

1. A self-reported health history, including any health care plans, which indicate any communicable diseases; chronic illnesses or injuries the individual has had; any known drug reactions and allergies; medications currently being taken; any necessary health procedures or special diets; and the name address and phone number for the child's health care provider and dentist.

2. Schools are required to comply with the immunization requirements as stated in 6 CCR 1009-2. Documentation of school-required immunization status or Certificate of Medical or Nonmedical Exemption, is required by the Colorado Board of Health. Up-to-date school-required immunizations must be documented as specified on the Colorado Department of Public Health and Environment (CDPHE) Certificate of Immunization or on an "approved alternate" Certificate of Immunization. Colorado law requires proof of immunization status or exemption be provided prior to or on the first (1st) day of admission. Colorado Department of Public Health and Environment regulation at 6 CCR 1009-2:VI(A), (May 15, 2023), no later editions or amendments are incorporated. These regulations are available from the Colorado Department of Public Health and Environment at no cost at https://www.coloradosos.gov/CCR/Welcome.do. These regulations are also available for public inspection and copying at the Colorado Department of Early Childhood, 710 S. Ash St., Denver, CO 80246, during regular business hours..

a. If the parent(s) or guardian(s) of a child wants a nonmedical exemption from the immunization requirement based on a religious belief whose teachings are opposed to immunizations or a personal belief that is opposed to immunizations, the child's parent(s) or guardian(s) must:

(1) Submit the certificate of Nonmedical Exemption with a signature from an immunizing provider in Colorado, or

(2) Submit the Certificate of Nonmedical Exemption received upon the completion of CDPHE's Online Immunization Education Module. The Certificate of Nonmedical Exemption and Education Module are herein incorporated by reference, no later editions or amendments are incorporated. The Certificate and Education Module are available at no cost from the Colorado Department of Public Health and Environment at https://cdphe.colorado.gov/vaccine-exemptions. The Certificate is available for public copying and inspection at the Colorado Department of Early Childhood, 720 S. Ash St., Denver, CO 80246, during normal business hours.

3. If the center is located at an elementary school and all the children attend that school, the immunization records may be maintained at the school office but must be accessible to center staff members and licensing specialists during the hours the center is open.

C. Guest Child Care Facilities as defined in section 26.5-5-303(10), C.R.S., are exempt from obtaining immunization records for children when all of the following conditions are met:

1. Students attend for fifteen (15) days or less in a fifteen (15)-consecutive-day period, no more than twice in a calendar year; and

2. At least sixty (60) calendar days separate the two sessions within the calendar year; and

3. The center notifies parent(s) or guardian(s) that non-immunized children are enrolled on the above short-term basis.

D. Emergency Procedures

1. When accidents, injuries, or illnesses occur, the program director or responsible adult in charge must notify the child's parent(s) or guardian(s) and, if necessary, seek medical care for the child.

2. A responsible staff member must be directly supervising any ill or injured child.

2.513 MEDICATION

A. Any un-expired routine medication, prescription and non-prescription (over-the-counter), must be administered only with a current written order of a health care provider with prescriptive authority and with written parent(s) or guardian(s) consent. Home remedies, including homeopathic medications, vitamins, and supplements must not be administered to children in childcare .

B. The written order by the health care provider with prescriptive authority must include:

1. Child's name and birthdate;

2. Licensed prescribing practitioner name, telephone number, and signature;

3. Date authorized;

4. Name of medication and dosage;

5. Time of day medication is to be given;

6. Route of medication;

7. Length of time the medication is to be given;

8. Reason for medication (unless this information needs to remain confidential);

9. Side effects or reactions to watch for; and

10. Special instructions.

C. Medications must be kept in the original labeled bottle or container. Prescription medications must contain the original pharmacy label.

D. Over-the-counter medication must be kept in the originally labeled container and be labeled with the child's first and last name.

E. In the case medication needs to be given on an ongoing, long-term basis, the authorization and consent forms must be reauthorized on at least an annual basis. Any changes in the original medication authorization require a new written order by the prescribing practitioner and a change in the prescription label.

F. Staff designated by the program director to give medications must complete the Department-approved medication administration training and have current annual delegation or more often as determined by the Department-approved Child Care Health Consultant. Delegation must be from the center's current Department-approved Child Care Health Consultant who must observe and document the competency of each staff member involved in medication administration. All staff administering medication must have current Department-approved Cardiopulmonary Resuscitation (CPR), first aid certification prior to administering medication with the following exceptions:

1. Staff determined by the program director, in consultation with the Department-approved Child Care Health Consultant, to be responsible for providing routine emergency medications covered in the approved Medication Administration training: Severe Allergy or Asthma. After completing the training, staff must receive delegation from their Department-approved Child Care Health Consultant for those medications only. Staff may then provide those medications to children based on the instructions from the child's individualized health care plan.

2. Staff determined by the program director, in consultation with the Department-approved Child Care Health Consultant, to be responsible for providing medications not covered in the approved medication administration training must complete training required by the Department-approved Child Care Health Consultant. After completing the training, staff must receive delegation from their Department-approved Child Care Health Consultant. Staff may administer medications and/or medical treatments such as emergency seizure medication, insulin, or oxygen based on instructions from the child's individualized health care plan.

3. Staff may be trained and delegated in the administration of a single rescue medication or rescue medical intervention by the center's Department-approved Child Care Health Consultant. Such training and delegation must qualify the staff member to provide a rescue medication or treatment for a specific child based on instructions from the child's individualized health care plan.

G. All medications, except those medications specified in the Department's approved medication administration training as emergency medications, must be locked and in an area inaccessible to children, but available to staff trained in administering medication. If refrigeration is required, the medication must be stored in either a separate refrigerator or a leak proof container in a designated area of a food storage refrigerator, separate from food and inaccessible to children. Controlled medications must be counted and safely secured, and specific policies regarding their handling require special attention in the centers policies. Access to these medications must be limited (see sections 27-80-210 and 12-280-134(3), C.R.S.).

1. Emergency medications must be stored in accordance with the Department-approved Child Care Health Consultant's recommendation. Emergency medications are not required to be stored in a locked area. Emergency medications may be stored in an area easily accessible and identifiable to staff but out of reach of children.

2. When away from the classroom, staff must carry emergency medications.

H. The center may, with written parent(s) or guardian(s) consent and authorization of the prescribing health care provider, permit children as defined in 26.5-5-314(4), C.R.S., who have asthma to

carry their own inhalers or children who are at risk of anaphylaxis to carry their own epinephrine, and use them as directed.

1. The center must have a specific written policy on the storage and access of inhalers and epinephrine carried by school-age children. The policy must include a written contract with the parent(s) or guardian(s) and child acknowledgement assigning levels of responsibility of each individual. This contract includes orders for the medication from a health care provider, along with confirmation from the health care provider and the Department-approved Child Care Health Consultant that the student has been instructed in and is capable of self-administering the prescribed medications.

2. All staff members and Department-approved Child Care Health Consultants must be aware of which children have asthma and severe allergies, and which of those may administer their own inhaler or auto injectors.

I. Children are not allowed to bring medications to the center unless accompanied by a responsible adult.

J. If a medication is expired or left over, the parent(s) or guardian(s) are responsible for picking up the medication. If the parent(s) or guardian(s) do not respond, the center must dispose of the medications in accordance with 6 CCR 1007-2, Part 1, Regulations Pertaining to Solid Waste Sites and Facilities (March 30, 2024) and 6 CCR 1007-3, Parts 99 (June 30, 2018), 100 (July 15, 2020) and 260-265 (July 15, 2023), 266 (June 30, 2014), 267 (March 30, 2024), and 268 (July 15, 2023), and as required by the Colorado Department of Public Health and Environment (CDPHE) https://cdphe.colorado.gov/colorado-medication-take-back-program (2023), herein incorporated by reference. No later editions or amendments are incorporated. These regulations are available at no cost from CDPHE at https://www.sos.state.co.us/CCR. The recommendations are available at no cost from CDPHE at https://cdphe.colorado.gov/hm/prep-med-waste-disposal and https://cdphe.colorado.gov/colorado-medication-take-back-program. These regulations and recommendations are also available for public inspection and copying at the Colorado Department of Early Childhood, 710 S. Ash St., Denver, CO 80246, during regular business hours..

K. Topical preparations such as petroleum jelly and bug sprays may be administered to children with written parental authorization. These preparations may not be applied to open wounds or broken skin unless there is a written order by the prescribing practitioner.

L. A written medication log must be kept for each child. This log is part of the child's records. The log must contain the following:

1. Child's name and birthdate;

2. Name of the medication, dosage, and route;

3. Time medication was administered;

4. Special instructions;

5. Name and initials of the individuals giving the medication; and

6. Notation if the medication was not given and the reason.

2.514 SUN PROTECTION

A. The center must obtain written authorization and instructions from the parent(s) or guardian(s) for the application of sunscreen or the use of another form of parent(s) or guardian(s) approved sun protection with a full-spectrum UVA/UVB rating of SPF thirty (30) or greater to their children's exposed skin prior to outside play year-round. A health care provider's permission is not needed to use sunscreen at the center..

B. The center must apply sunscreen, have the parent(s) or guardian(s) apply sunscreen, or use another form of parent(s) or guardian(s) approved sun protection for children prior to children going outside. Sunscreen must be reapplied as directed by the product label.

C. When supplied for an individual child, the sunscreen must be labeled with the child's first and last name. The child may carry their individual sunscreen when away from the classroom.

D. If sunscreen is provided by the center, parent(s) or guardian(s) must be notified in advance, in writing, of the type of sunscreen the center will use.

E. Children may apply sunscreen to themselves under the direct supervision of a staff member.

CHILD CARE SERVICES

2.515 FOOD AND NUTRITION

A. The center must show evidence that all meals and snacks provided by the center meet current United States Department of Agriculture (USDA) Child and Adult Care Food Program meal pattern guidance and requirements published by the USDA Food Nutrition Service at https://www.cacfp.org/meal-pattern-guidance/ (April 2016) and 7 C.F.R. sections 210.10 and 226.20 (July 1, 2022), herein incorporated by reference. No later editions or amendments are incorporated . These regulations are available at no cost from the USDA Food Nutrition Service at https://www.ecfr.gov. These regulations are also available for public inspection and copying at the Colorado Department of Early Childhood, 710 S. Ash St., Denver, CO 80246, during regular business hours.

1. Children who are at the center for more than four (4) hours, day or evening, must be offered a meal.

B. Centers must not provide sugar sweetened beverages to children. These are beverages that have been sweetened with various forms of sugars that add calories and include, but are not limited to: soda, fruitades, fruit drinks, flavored milks, and sports and energy drinks.

C. If 100% fruit juice, which is not a sugar sweetened beverage, is offered as part of meals and/or snacks, it must be limited to no more than two (2) times per week.

D. In centers that do not regularly provide a meal, if a child brings a meal from home that does not appear to meet current USDA Child and Adult Care Food Program meal pattern requirements, the center must have foods available to offer as a supplement to that meal.

E. Meal menus must be planned at least one (1) week in advance, dated, and available to parent(s) or guardian(s). After use, menus must be filed and retained for three (3) months. Records must be available for periodic review and evaluation.

F. The size of servings must be suitable for the child's age and appetite, and sufficient time must be allowed so that meals are unhurried.

G. Children must not be given foods that are contrary to the religious or cultural beliefs of their families or that are known to cause an allergic reaction or a health hazard.

2.516 GUIDANCE

A. Guidance must be appropriate to the development of the child and used as an opportunity to teach children social-emotional skills, such as self-regulation, problem-solving, and empathy for others..

B. Children must not be subjected to physical or emotional harm, humiliation, or threats.

C. The director must not use, or permit a staff member or child to use, corporal punishment as defined in section 22-1-140, C.R.S.

D. Guidance must not be associated with food, rest, or toileting. Children should never be punished for toileting accidents. Food must not be denied or forced upon a child as a disciplinary measure.

E. Separation, when used as guidance, must not exceed five (5) minutes and must be appropriate for the child's development. The child must be in a safe, lighted, well-ventilated area and be within sight and hearing of an adult. The child must not be isolated in a locked or closed area.

F. Verbal abuse and derogatory remarks about the child are not permitted.

G. Authority for guidance must not be delegated to other children, and the center must not sanction one child punishing another child.

H. Physical activity and outdoor time must not be withheld as a disciplinary measure..

I. Exercise must not be used as a disciplinary measure.

J. Any form of restraint is not permitted.

K. Physical redirection may be used to keep a child from imminent danger. The child must be immediately released once removed from imminent danger.

2.517 TRANSPORTATION

A. Transportation provided by the center

1. The center is responsible for any children it transports.

2. The center must obtain written permission from parent(s) or guardian(s) for any transportation of their child during child care hours.

3. The number of staff members who accompany children when being transported in the vehicle must meet the child care staff ratio found at rule section 2.510. The driver of the center vehicle is considered a staff member.

4. All children must be secured in a child restraint system that is appropriate for the age and development of that child. The child restraint must conform to all applicable Colorado child passenger safety laws at section 42-4-236 and 42-4-237, C.R.S.

5. Children must be loaded and unloaded out of the path of moving vehicles.

6. Children must remain seated while the vehicle is in motion. Children must not be permitted to stand or sit on the floor of a moving vehicle, and their arms, legs, and heads must remain inside the vehicle at all times.

7. Written agreement must be made between the center and parent(s) or guardian(s) on transportation arrangements for school-age children (e.g walking, riding a bicycle, bus, or traveling in a vehicle) to and from the center. It is the center's responsibility to ensure the child arrives at the destination at the agreed upon time..

8. Prior to a field trip or other excursion, the center must obtain information on liability insurance from parent(s) or guardian(s) and staff who transport children in their own cars and verify that all drivers have valid driver's licenses.

B. Requirements for Vehicles

1. Any vehicle the center uses for transporting children to and from the center or during school-age child care center activities must meet the following requirements:

   a. The vehicle must be enclosed and have door locks;

   b. The seats of the vehicle must be constructed and installed according to the vehicle manufacturer's specifications;

   c. The vehicle must be kept in satisfactory condition to assure the safety of occupants;

   d. Modifications to vehicles including, but not limited to, the addition of seats and seat belts must be completed by the manufacturer or an authorized representative of the manufacturer. Documentation of such modifications must be available for review by the Department; and

   e. The provider must not transport more children than any vehicle is able to safely accommodate when child restraint systems and seat belts are properly installed in the vehicle.

2. Any child transported by the center must be properly restrained in a child restraint system that meets the requirements of Colorado child passenger safety laws at sections 42-4-236 and 42-4-237, C.R.S.

3. Children who meet the requirements to be restrained in a safety belt must be instructed and monitored to keep the seat belt properly fastened and adjusted.

4. Two (2) or more children must never be restrained in one (1) safety belt or child restraint system.

5. In vehicles with a manufacturer's established capacity of sixteen (16) or more passengers, seat belts for passengers are not required.

C. Requirements for Drivers of Vehicles

1. All drivers of vehicles transporting children must operate the vehicle in a safe and appropriate manner.

2. All drivers of vehicles owned or leased by the center in which children are transported must have a current Department-approved First Aid and safety certificate that includes Cardiopulmonary Resuscitation (CPR) for all ages of children.

3. In each vehicle used to transport children, drivers must have access to a First Aid kit.

4. The driver must ensure that all doors are secured at all times when the vehicle is moving.

5. The driver must make a good faith effort to ensure that each child is properly belted throughout the trip.

6. The driver must not eat, smoke, vape, or use a cellular or other mobile device while driving.

7. The required staff to child ratio must be maintained at all times.

8. All drivers must be at least twenty (20) years of age.

9. Drivers must complete a minimum of (3) three hours of driver training and a minimum of one (1) hour of behind the wheel training prior to transporting children. The driver training curriculum may be developed and administered by the center and must include at a minimum: participant transport attendance procedures, including taking attendance at the destination; managing behavioral issues; loading and unloading procedures; daily vehicle inspection procedures; proper tire inflation; emergency equipment and how to use it; accident procedures; passenger illness procedures; procedures for backing up; and vehicle evacuation. After completing the curriculum, centers must provide a certificate of completion to their drivers.

    a. Documentation of driver training must be maintained in the employee file.

PROGRAM ACTIVITIES

2.518 ACTIVITY

A. The center must provide parent(s) or guardian(s) with a list of activities it offers.

B. Parent(s) or guardian(s) must be given the opportunity to indicate to the staff of the center if they do not want their child to participate in an activity.

C. Parent(s) or guardian(s) must be notified in advance of all activities that will occur away from the center. If a child participates in activities away from the center, the center must obtain the parent(s) or guardian(s) written permission for the child to participate in the activity at a specific location and day. Staff ratios found at rule section 2.510, must be maintained during any activities away from the center.

D. If the center takes children on routine short excursions, such activities and locations must be posted at the center.

E. Portable first aid kits must be available to staff at all times, including field trips and short excursions, and must be checked and restocked on at least a monthly basis.

2.519 SCREEN TIME AND MEDIA USE

A. Television viewing, including videos, should not be permitted without the approval of a child's parent(s) or guardian(s), who must be advised of the center's policy regarding television and video viewing.

B. All media that children are exposed to must be developmentally appropriate and must not contain explicit language or topics.

C. All television, recorded media, computer, tablet, cell phones, video games and other media devices are prohibited during snack or meal times except during a planned special occasion.

D. The center must develop a media and internet usage plan outlining screen time and media use related to their curriculum. The media plan must have information on ongoing communication with children about safe online practices. The center must obtain a signed document stating that the parent(s) or guardian(s) have received this plan, and agree to the activities described in the plan.

E. All children must be provided with a developmentally appropriate alternative activity once the child(ren) loses interest in the media activity.

F. There is no time restriction for children using personal adaptive equipment, assistive technology, or participating in mandatory school activities.

2.520 FIELD TRIPS

A. The center must notify the children's parent(s) or guardian(s) in advance of any field trip. The staff-child ratios found at rule section 2.510 must be maintained at all times.

B. All groups of children must be directly supervised by a qualified program director or program leader at all times.

C An accurate itinerary of each field trip must remain at the center.

D. The staff must have the following information about each child: parent(s) or guardian(s) contact information; health care provider's name, address, and phone number; and the written authorization from parent(s) or guardian(s) for emergency medical care.

E. If children attending the field trip require medications to be administered during the field trip or have special health needs, a staff member with current medication administration training and delegation must attend the field trip.

F. A list of all children and staff on a field trip must be kept at the center.

G. A copy of the emergency disaster plan must accompany staff offsite.

2.521 PHYSICAL ACTIVITY

A. Daily physical gross motor activities, with or without equipment or materials, must be provided outdoors, or indoors during adverse weather, and air quality index advisory Unhealthy for Sensitive Groups for no less than sixty (60) minutes total for school-age child care centers operating over five (5) hours per day. Physical gross motor activities do not have to occur all at one time.

B. Daily physical gross motor activities, with or without equipment or materials, must be provided outdoors or indoors during adverse weather, and air quality index advisory Unhealthy for Sensitive Groups for no less than thirty (30) minutes total for school-age child care centers operating from three (3) to five (5) hours per day. Physical gross motor activities do not have to occur all at one time.

C. Daily physical gross motor activities, with or without equipment or materials, must be provided outdoors or indoors during inclement weather, for no less than fifteen (15) minutes total for school-age child care centers operating less than three (3) hours per day. Physical gross motor activities do not have to occur all at one time.

CHILD CARE EQUIPMENT AND MATERIALS

2.522 GENERAL REQUIREMENTS

A. Buildings must be kept in good repair and maintained in a safe condition.

B. Items labeled “keep out of reach of children” must be inaccessible to children.

C. Indoor and outdoor equipment, materials, and furnishings must be sturdy, safe and free of hazards.

D. Equipment, materials, and furnishings, including durable furniture such as tables and chairs, must be stored in a manner that is safe for children.

E. Corridors, halls, stairs, and porches must be adequately lighted. Operable battery-powered lights must be provided in locations readily accessible to staff in the event of electric power failure. Batteries must be checked regularly.

2.523 EQUIPMENT AND MATERIALS

A. The center must have enough play materials and equipment so that at any one (1) time the average number of children attending the school-age child care center can be individually involved. Children at the center must have access to age-appropriate materials and equipment from at least the following categories:

1. Arts and Crafts;

2. Manipulatives and games;

3. Gross motor equipment;

4. Literature; and

5. Science and Math equipment and materials.

B. An appropriate supply of play materials must be readily accessible to children and must be arranged in an orderly manner so that children can select, remove, and replace the play materials either independently or with minimal assistance.

C. In a building based school-age child care center, rest time and rest equipment must be provided for school-age children who require a rest time.

2.524 INDOOR AND OUTDOOR EQUIPMENT, MATERIALS, AND SURFACES

A. The building based school-age child care center must provide access to an outdoor play area. The outdoor play area may be a city park or public school ground. The play area must meet the following requirements:

1. The center must provide a total outside play area of at least seventy-five (75) square feet per child for a minimum of one-third of the licensed capacity of the center or a minimum of 1500 square feet, whichever is greater;

2. Access to a shaded area, sheltered area, or inside building area must be provided at all times to guard children against the hazards of excessive sun and heat;

3. Outdoor play areas provided by the center must not have equipment that exceeds six (6) feet in height for any surface area intended for children's play unless equipped with a protective barrier to prevent children from falling; and

4. Resilient Surfacing

    a. All outdoor climbing equipment over eighteen (18) inches must have least six (6) inches resilient surface throughout the use zone.

    b. Department-approved resilient surfacing includes loose fill materials such as wood chips, wood mulch, engineered wood fiber, pea gravel, synthetic pea gravel, shredded rubber tires, and sand. Solid unitary materials include poured in place surfacing, approved rubber mats, playground tiles, and Astroturf with built in resilient pad.

    c. Loose fill resilient surface must be raked regularly to retain its resiliency and to retain a depth of at least six (6) inches.

    d. Any newly installed solid unitary materials used for resilient materials must have written documentation from the manufacturer stating the material meets current federal safety standards. The documentation must be available for review at all times.

5. Use Zone

    a. Climbing equipment must have a six (6) foot use zone surrounding the equipment. For slides exceeding six (6) feet in height, the use zone from the base of the slide must be as long as the slide height.

    b. The use zone for swings used by school-age children is determined by measuring the distance from the top of the swing to the ground. This measured distance must extend from both the front and the back of the swing.

6. Moving equipment must be located toward the edge or corner of a play area or be designed in such a way as to discourage children from running into the path of the moving equipment.

7. Metal equipment must be placed in the shade.

8. Swings must have seats made of a flexible material and all "S" hooks must be secured.

9. All outdoor play areas used for children's activities must be checked prior to use and kept safe and free from hazardous materials or debris by removal of debris, dilapidated structures, and broken or worn play equipment. The staff must identify hazardous, high-risk areas; those areas must be made inaccessible to children to reduce the possibility of injuries and accidents.

10. For purposes of a playground facility inspection, the Department shall accept as satisfactory proof of valid certification of the playground facility, certification, or a copy of certification within the last twelve (12) months, from an individual who is licensed or certified to perform playground safety inspections through the National Recreation and Park Association, or other nationally recognized playground facility safety organization. The Department shall not require a duplicate inspection if there is a satisfactory inspection report.

a. All playground facilities who hold a certified playground safety inspection must maintain resilient surfacing in compliance with the certification.

11. The play area must be designed so that it is easily supervised.

12. Children must wear helmets when riding scooters, bicycling, skateboarding, or rollerblading. The helmet must be removed after the activity.

13. All pieces of playground equipment must be designed to guard against entrapment and strangulation.

14. The playground area must be in good repair, of solid and safe construction, free of rough edges, protruding bolts.

15. Playground surfaces must be checked prior to use for the presence of dangerous or other foreign materials.

16. Motorized riding toys are not permitted.

17. Trampolines and inflatable bouncers are prohibited.

2.525 INDOOR LEARNING ENVIRONMENT

A. There must be open, indoor play space of at least thirty (30) square feet of floor space per child, including space for movable furniture and equipment. For space to be counted in the square footage calculation, the space must be accessible and used by children. Indoor space is exclusive of kitchen, toilet rooms, office, staff rooms, hallways and stairways, closets, laundry rooms, and furnace rooms.

B. Indoor play areas must be uncluttered, safe, and allow for freedom of movement.

C. Adequate storage space must be provided for indoor and outdoor equipment and supplies.

BUILDING AND FACILITIES

2.526 TOILET FACILITIES

A. Children must be allowed the use of gender-segregated toilet facilities that are consistent with their gender identity, with toilets separated by partitions to provide privacy or private toilet facilities.

B. There must be a minimum of one (1) toilet per thirty (30) or fewer children for which the center is licensed. Hand-washing facilities must be available at the ratio of one (1) sink per thirty (30) or fewer children. After April 1, 2018, all new construction must have a minimum of one (1) toilet and one (1) hand washing sink per every fifteen (15) or fewer children for which the center is licensed.

C. Children with specific toileting needs

1. The center must have one (1) or more designated change areas for all children in need of changing. The change area must:

a. Meet a child’s individual and developmental needs and be large enough to accommodate the size of the child;

b. Have a place inaccessible to children for storing all change supplies and disinfecting solutions and products;

c. Have sufficient supplies; and

d. Be located and arranged to provide privacy in need of diaper changing and toileting assistance.

2.527 GENERAL SAFEY REQUIREMENTS

A. Firearms as defined in section 18-1-901(3)(h), C.R.S., are prohibited on the premises, both indoor and outdoor, and in any vehicle in which children are transported.

B. Major cleaning is prohibited in rooms occupied by children.

C. Volatile substances, such as gasoline, kerosene, fuel oil, oil-based paints, firearms, explosives, and other hazardous items, must be stored away from the area used for child care and be inaccessible to children.

D. Combustibles, such as cleaning rags, mops, and cleaning compounds, must be stored in well-ventilated areas separated from flammable materials and stored in areas inaccessible to children.

E. Combustible materials must not be stored in hallways, stairways, boiler rooms, mechanical rooms, or electrical equipment rooms.

F. All heating units, gas or electric, must be installed and maintained with safety devices to prevent fire, explosions, and other hazards. No open-flame gas or oil stoves, unscreened fireplaces, hot plates, or unvented heaters can be used for heating purposes. All heating elements, including hot water pipes, must be insulated or installed in such a way that children cannot come in contact with them. Nothing flammable or combustible can be stored within three (3) feet of a hot water heater or furnace.

G. Closets, attics, basements, cellars, furnace rooms, and exit routes must be kept free from accumulation of extraneous materials such as furnishings, newspapers, and magazines.

H. Extension cords cannot be used in place of permanent wiring.

I. No other business can operate in the rooms used by the center during the hours of child care.

2.528 FIRE AND OTHER SAFETY REQUIREMENTS

Centers must comply with the locally adopted fire code, including but not limited to the following:

A. Every area used for child care must have at least two (2) exits to permit the prompt escape of occupants in case of fire or other emergency.

B. Every building and structure must be constructed, arranged, equipped, maintained, and operated so as to avoid undue danger to the lives and safety of its occupants from fire, smoke, fumes, or resulting panic during the period of time reasonably necessary for escape from the building or structure in case of fire or other emergency.

C. In every building or structure, exits must be arranged and maintained so as to provide free and unobstructed egress from all parts of the building or structure at all times when it is occupied. Locks or fastening devices to prevent free escape from the inside of any building must not be

installed. Only panic hardware or single-action hardware is permitted on a door or on a pair of doors. All door hardware must be within the reach of children.

D. One (1) exit from each room must be directly to the exterior of the building or to a common hallway leading to the exterior. The exit path must not go through an intervening room such as a bathroom, another classroom, storage room, or kitchen.

E. All stairways, interior and exterior, that are used by children must be provided with handrails within reach of the children.

F. Regardless of the number of staff and children, exit doors shall be openable from the inside without the use of a key or any special knowledge or effort. Dead bolts may be installed on the main exit door, but the lock cannot be used during business hours, and there must a sign indicating that “this door must remain unlocked during business hours.”.

G. Every exit must be clearly visible, or the route to reach it must be conspicuously indicated. Each path of escape must be clearly marked.

H. Fire alarm and fire sprinklers must be provided in accordance with the locally adopted fire code. If a fire alarm system is installed, it must be used to warn occupants of the existence of fire or to facilitate the orderly conduct of fire exit drills.

RECORDS AND REPORTS

2.529 ADMINISTRATIVE RECORDS AND REPORTS

A. The following records must be on file at the center:

1. Records of enrollment, daily attendance for each child, and daily record of the time each child arrives at and departs from the center for the past twelve (12) months must be on file at the center either in written or electronic form. The previous two (2) years must be on file at either the center, a central location, or storage.

2. A list of current staff members, substitutes, and staffing patterns for the past twelve (12) months must be on file at the center either in written or electronic form. The previous two (2) years must be on file at either the center, a central location, or storage.

3. A record of visitors to the center for the past twelve (12) months must be on file at the center either in written or electronic form. The previous two (2) years must be on file at either the center, a central location, or storage.

B. The center must submit to the Department as soon as possible, but not longer than twenty-four (24) hours, a written report about any child who has been separated from the group outside of the supervision of their assigned staff member or for whom the local authorities have been contacted. Such report must indicate:

1. The name, birth date, address, and telephone number of the child;

2. The names of the parent(s) or guardian(s) and their address and telephone number if different from those of the child;

3. The date when the child was separated from the group outside of the supervision of their assigned staff member;

4. The location, time, and circumstances when the child was separated from the group outside of the supervision of their assigned staff member;

5. Actions taken to locate the child including whether local authorities were notified; and

6. The name of the staff person supervising the child.

C. All school-age child care centers must register their operational status information in the Department's provider status portal every calendar year between April and October.

1. All school-age child care centers must update their information any time their operational status changes during a declared state emergency.

2.530 CHILDREN'S RECORDS

A. An admission record must be completed for each child prior to or at the time of the child's admission. This record must be updated annually and when changes occur. The admission record must include:

1. The child's full name, birth date, current address, and date of enrollment;

2. Parent(s) or guardian(s) names; home and e-mail addresses; telephone numbers, including home, work, and cell numbers; employer name and work address; and any special instructions as to how the parent(s) or guardian(s) can be reached during the hours the child is at the center;

3. Names, addresses, and telephone numbers of persons other than parents/guardians who are authorized to pick up the child from the center;

4. Names, addresses, and telephone numbers of persons who can assume responsibility for the child in the event of an emergency if parent(s) or guardian(s) cannot be reached immediately;

5. Name, address, and telephone number of the child's physician, dentist, and hospital of choice if applicable;

6. A health history including any health care plans, which indicates communicable diseases, and chronic illnesses or injuries the individual has had, immunization record or exemption status, any known drug reactions or allergies, medications being taken, and any necessary health procedures or special diet needs;

7. An annual written authorization for emergency medical care signed and dated submitted by the parent(s) or guardian(s). The authorization must be notarized if required by the local hospital, clinic, or emergency health care facility;

8. Written authorization obtained in advance of the event from a parent(s) or guardian(s) for the child to participate in field trips or special activities, listing all exclusions;

9. Written authorization from a parent/guardian for the center to transport the child to and from school, whether walking or riding in an approved vehicle;

10. A written record of any serious accident, illness, or injury occurring during care with a copy provided to the parent(s) or guardian(s);.

11. Written authorization from parent(s) or guardian(s) for media release; and

12. A written record of any incident occurring during care when the child has been separated from the group outside of the supervision of their assigned staff member or for whom the local authorities have been contacted (see rule section 2.505(C)(12)).

2.531 STAFF RECORDS

A. A written or electronic record must be maintained by the center for each staff member, and volunteer, that includes the following:

1. Name, address, telephone number, email, and birth date of the individual;

2. Dates of employment and employment history ;

3. Name, address, and telephone number of the person(s) to be notified in the event of an emergency;

4. Documentation of qualifications and training;

5. All information from background checks as required in the General rules for Child Care Facilities at rule sections 2.120 and 2.121; and

6. Within thirty (30) calendar days of employment a signed statement indicating that the individual has been trained, understands, and has had the opportunity to ask questions regarding the “Rules Regulating School-Age Child Care,” the “General Rules for Child Care Facilities,” and the “Rules Regulating Special Activities,” if applicable.

B. Each staff member's personnel file must contain all required information within thirty (30) working days of the first day of employment.

2.532 CONFIDENTIALITY AND RETENTION

A. The confidentiality of all personnel and children's records must be maintained (see rule sections 2.128 through 2.130 of the General Rules for Child Care Facilities).

B. Staff and children's records must be available, upon request, to authorized representatives of the Department.

C. If records for organizations having more than one (1) center are kept in a central file, duplicate identifying and emergency information for both staff and children must also be kept on file at the center attended by the child and where the staff member is assigned.

D. The records of children and staff must be maintained by the school-age child care center for at least three (3) years after the last date of attendance or employment with the school-age child care center.

E. The health and mental health consultation records must be maintained by the center for at least three (3) years from the date of consultation.

F. Posting of any personal information or photos of children on social media or advertisement without written parental consent is prohibited.

SCHOOL-AGE CHILD CARE CENTERS OPERATED BY PUBLIC SCHOOL DISTRICTS; DAY CAMPS; MOBILE CAMPS;OUTDOOR CAMPS; AND OVERNIGHT TRIPS

2.533 SCHOOL-AGE CHILD CARE CENTERS OPERATED BY A PUBLIC SCHOOL DISTRICT

A. The administration of medical marijuana must comply with policies listed in sections 2-30-116, 12-255-120, and 12-255-127, C.R.S.

B. Substitutes

1. In licensed school-age child care centers operated by public school districts, substitutes may be from the sponsoring school system's list of approved substitutes. Substitutes who do not meet qualifications for the position that they are substituting for can be used up to ten (10) calendar days per year. The dates and times must be recorded and made available for review at all times.

DAY CAMPS

2.534 BUILDING BASED DAY CAMPS

A. Staff Qualifications

1. All building based day camp staff must receive a minimum of fifteen (15) hours of pre-camp training. Pre-camp training must include all training activities that staff members participate in as a whole. Training must include, but not be limited to, familiarizing staff with the camp mission, site emergency policy and procedures, how to supervise and facilitate activities with campers, and health care policies and procedures. Policies and procedures must be in writing. Day camps must have a system in place to provide staff the essential training information for late hires.

2.535 MOBILE DAY CAMP

A. The minimum age of children is six (6) years old.

B. Facility Requirements

1. The mobile day camp school-age child care centers may use a public park or playground as a gathering place if the mobile day camp primarily includes field trips away from the gathering place. Such school-age child care centers must have a contingency plan for facilities to use during adverse weather and Air Quality Index Advisory Unhealthy for Sensitive Groups. The plan must be available to parent(s) or guardian(s) on a daily basis.

2. If using the same building or designated area on a regular basis as a gathering place, time spent in the building cannot exceed two (2) total hours which is divided evenly between the morning drop off one (1) hour and evening pick up one (1) hour.

3. If the mobile day camp is using the same building or designated area on a regular basis for more than one (1) hour a day not to exceed a total of three and a half (3 ½) hours per day:

a. The building-based capacity must meet the thirty (30) square feet per child requirement.

b. The building-based capacity must meet the one (1) for every fifteen (15) children toilet requirements.

c. A variety of developmentally appropriate materials, equipment, and learning activities from the following categories must be available so that for any one (1) or all of the children in attendance can be individually involved:

1. Arts and Crafts supplies;

2. Manipulatives and Games;

3. Gross motor equipment;

4. Literature; and

5. Science and math equipment and materials.

4. Mobile day camps must have a way to be contacted while in transit.

5. The mobile day camp must provide written schedules to parent(s) or guardian(s) and the Department. Any changes to location must be provided to parent(s) or guardian(s) and the Department prior to the change in location.

6. The mobile day camp must have an emergency evacuation plan and location.

7. The mobile day camp must develop a plan for transporting children, specific to each mobile day camp, in the case of an emergency. The plan must be approved by the Department prior to caring for children.

8. In case of a change in the planned itinerary, the headquarters of the mobile day camp must be notified immediately. parent(s) or guardian(s) must be instructed to contact the main headquarters to determine the exact location of their child.

9. In case of an emergency the mobile day camp must have emergency plans for all field trip locations.

a. Plans must be available for the Department to review.

b. Plans must be available for parent(s) or guardian(s)

c. All staff must be trained in emergency plans for all field trip locations prior to field trips.

C. Staff Qualifications

1. All staff must receive a minimum of fifteen (15) hours of pre-camp training. Pre-camp training must include all training activities that staff members participate in. Training must include, but not be limited to, familiarizing staff with the camp mission, site emergency policy and procedures, how to supervise and facilitate activities with campers, and health care policies and procedures. Mobile day camps must have a system in place to provide staff the essential training information for late hires.

2. There must be one (1) staff member for each ten (10) children in attendance if any six (6) year olds are present. There must be (1) staff member for each (15) children in attendance when all children are seven (7) years or older.

3. The mobile day camp must meet one (1) of the following:

    a. There must be at least one (1) program director and one (1) program leader at all times with each group of children.

    b. There must be at least two (2) program leaders at all times with each group of children.

    c. If the mobile day camp is less than fifteen (15) minutes away from the base camp the camp may have one (1) program leader and one staff aide who is at least (18) years of age and has a current department approved CPR and First Aid certification with each group of children.

D. Equipment and Materials

1. If children are not actively engaged in a scheduled activity, children at the mobile day camp must have access to age-appropriate materials and equipment from at least the following categories:

    a. Arts and Crafts;

    b. Manipulatives and Games; and

    c. Literature

2.536 OUTDOOR DAY CAMP

A. The minimum age of children is six (6) years old.

B. Facility Requirements

1. The outdoor day camp school-age child care centers may use a public park or playground as a gathering place if the outdoor day camp primarily includes field trips away from the gathering place. Such school-age child care centers must have a contingency plan/plans for facilities to use during adverse weather and air quality index advisory Unhealthy for Sensitive Groups. The plan must be available to parent(s) or guardian(s) on a daily basis.

2. Written schedules must be provided to parent(s) or guardian(s)) and the Department. Any changes to location must be provided to parent(s) or guardian(s) and the Department in advance.

3. The outdoor day camp must have emergency evacuation plans and location.

4. The outdoor day camp must develop a plan for transporting children, in the case of an emergency. The plan must be approved by the Department prior to caring for children.

5. In case a change in the planned itinerary, the headquarters of the outdoor day camp must be notified immediately. Parent(s) or guardian(s) must be instructed to contact the main headquarters to determine the exact location of their child.

6. In case of an emergency, the outdoor day camp must have emergency plans for all field trip locations.

    a. Plans must be available for the Department to review.

b. Plans must be available for parent(s) or guardian(s).

c. All staff must be trained in emergency plans for all field trip locations prior to field trips.

C. Staff Qualifications

1. All staff must receive a minimum of fifteen (15) hours of pre-camp training. Pre-camp training must include all training activities that staff members participate in. Training should include, but not be limited to, familiarizing staff with the camp mission, site emergency policy and procedures, how to supervise and facilitate activities with campers, and health care policies and procedures. Outdoor day camps must have a system in place to provide staff the essential training information for late hires.

2. There must be one (1) staff member for each ten (10) children in attendance if any six (6) year olds are present. There must be (1) staff member for each (15) children in attendance when all children are over the age of seven (7).

3. The outdoor day camp must meet one of the following:

a. There must be at least one (1) program director and one (1) program leader at all times with each group of children.

b. There must be at least two (2) program leaders at all times with each group of children.

c. If the outdoor day camp is less than fifteen (15) minutes away from the base camp the camp may have one (1) program leader and one staff aide who is at least (18) years of age and has a current department approved CPR and First Aid certification with each group of children.

D. Equipment and Materials

1. A variety of developmentally appropriate materials, equipment, and learning activities from the following categories must be available so that for any one (1) time at least half (1/2) of the children for which the outdoor day camp is licensed can be individually involved:

a. Arts and Crafts supplies;

b. Manipulatives and Games;

c. Gross motor equipment;

d. Literature; and

e. Science and math equipment and materials.

2.537 DAY CAMPS PROVIDING OVERNIGHT

A. The minimum age of children is six (6) years old.

B. Day camp school-age childcare centers may offer no more than two (2) overnight stays per camp session.

C. Programs must supply the dates and locations of all overnight stays to the Department prior to the camp season.

D. Supervision:

1. At no time may a child be left without qualified supervision. Sleeping quarters of the counselors must be within sight or hearing distance of the sleeping quarters of the children whom they supervise.

2. Ratio of one (1) program director or program leader per number of children must be maintained at all times as follows:

Age of Children	**Number of Children**	**Number of Staff Members**
6 yrs.- 7 years. Old	6	1
8 through 10 yrs. Old	8	1
11 through 13 yrs. Old	10	1
14 yrs. and older	12	1

3. There must be at least one (1) staff member who is Director qualified present for the overnight stay.

4. If the overnight stay is away from the day camp location, there must be a day-to-day itinerary prepared prior to departure. The day camp headquarters must keep a copy of the itinerary. The itinerary must be followed as closely as possible. Day camp headquarters must be notified of an itinerary change as soon as possible.

5. Sources of emergency care and methods of communication with such facilities as hospitals, police, and forest service must be identified for each campsite on the itinerary.

6. Transportation must be available at all times in cases of medical emergency according to the written emergency medical evacuation plan of the day camp.

7. Overnight location cannot be more than thirty (30) minutes away from emergency medical services by vehicle.

F. Sleeping facilities

1. All structures used by children must be kept in good repair at all times.

2. At least one-half of the floor area in each living unit, excluding tents, must have a minimum ceiling height of seven (7) feet. No portion of a room having a ceiling height of less than five (5) feet will be considered as usable floor space.

3. If fabric structures (tents) are used they must be constructed of a fire- and flame-retardant material.

4. Each child must be provided with their own mat, pad, bed, or cot.

5. The aisles between rows of cots, beds, or bunks must be kept clear for exiting purposes. There must be at least two (2) feet of clear space separating sides of cots, beds, or bunks.

6. If bunk beds are in use, no bunks may contain more than two tiers of beds. There must be at least twenty-seven (27) inches of clear space separating the tiers of beds and thirty-six (36) inches of clear space between the top tier and the ceiling. Electric lights which are within reach of the top bunk must be protected.

7. Each permanent sleeping unit, building, or tent must have at least thirty (30) square feet of floor space per person, child, or staff member for single-tier beds and twenty (20) square feet per person, child, or staff member for two (2) tier bunks.

8. In tent structures which have a platform floor, beds or bunks must be arranged in such a fashion that no child who might fall from a bed or bunk could fall through the sides of the tent to the ground below.

9. Campers must sleep in the same room or tent with individuals that are consistent with their gender identity.

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